



File No.: EXP202314580 (AI/00326/2024)

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 20, 2023, a complaint was filed with entry registration number REGAGE(...), REGAGE(...) and REGAGE(...) before the Spanish Agency for Data Protection against SEUR GEOPOST, S.L. with NIF B82516600 (hereinafter, SEUR GEOPOST). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose delivery management was carried out by the entity being complained about, and that the delivery person deposited the package, without authorization to do so, in a public establishment near the complainant's residence, exposing third parties to the data contained on the shipping label of the mentioned package, which they understand to be behavior contrary to data protection regulations. Along with the complaint, a chat thread maintained with the entity that sent the package and a message received from the entity being complained about, in which it acknowledges the delivery of the package in a nearby establishment to the complainant's residence, is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to SEUR GEOPOST, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 20, 2023, as evidenced by the acknowledgment of receipt in the file.

On November 17, 2023, this Agency received a written response indicating:

"FIRST.- In the event that the provision of the delivery service was linked to a contract with the company supplying the product/seller, a copy of the contract signed with that company must be provided.

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It is of interest to this party to point out that SEUR maintains a contractual relationship with the company AMAZON (hereinafter AMAZON) where SEUR is obliged to provide AMAZON with the transportation service consisting of the collection of the shipments that it requests for delivery to the destination.

As requested by the AEPD, Annex I includes an extract of the contract signed between SEUR and the company AMAZON.

SECOND.- The decision made regarding this complaint and Report on the causes that have motivated the incident that originated the complaint.

After receiving this information request, SEUR has proceeded to investigate the events that occurred and has verified the following:

- That a SEUR delivery person went to the complainant's home to make a delivery.
- That the complainant was absent at the time of delivery.
- That, consequently, the delivery person left the complainant's package at a nearby establishment.

Thus, after analyzing the facts, we consider that the incident occurred as a result of an error by the delivery person, for not having followed SEUR's internal protocols for the correct delivery and collection of goods.

In this regard, SEUR informs the AEPD that, in compliance with the obligations of the applicable

regulations for its transportation activity, it has implemented the corresponding procedures and corporate manuals, which determine the guidelines to be followed for the correct delivery or collection of goods.

Specifically, SEUR has a manual with the operational procedures that delivery persons must follow called "Delivery Person Operational Manual," a document that is provided to them at the time of hiring or the start of service provision with SEUR. According to what is specified in this manual, when a recipient is absent from the residence, the delivery person will notify the absence in the PDA, automatically triggering a call to the recipient to agree on a new delivery method, among which is the authorized delivery to a third party. Annex II includes screenshots from the manual specifying the obligations of delivery persons for the correct delivery or collection of goods.

Therefore, through that call, the recipient is given the opportunity to provide their authorization for the delivery person to leave the goods with third parties such as a neighbor, the concierge, etc. If the recipient authorizes this, the delivery person will mark this option in the PDA by pressing the button "Authorized delivery at another address." All this operation is part of the training provided to delivery persons for compliance with SEUR's internal protocols. Annex III includes an extract of the training in this regard.

Additionally, SEUR provides delivery persons with other periodic training on the importance of making good use of and diligently handling the data

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personal who manage daily operations of senders, recipients, and/or authorized persons.

Specifically, one of the latest training actions carried out consisted of disseminating a video titled "Best Practices in Privacy." Likewise, as part of these periodic trainings, a training video titled "Delivery Procedure: Absent Customer" has been developed with the aim of reinforcing awareness about the protocol to follow in these cases. An excerpt from this training is included as Annex IV.

For all these reasons, as previously mentioned, we confirm that the incident occurred due to a specific malpractice by the delivery person for not following the internal protocols of the company, and therefore, following a practice not authorized by SEUR.

THIRD.- Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

As described in the previous section, SEUR has implemented adequate measures in the various delivery procedures and manuals to prevent the reported events from happening again. Additionally, periodic training is conducted to raise awareness among delivery personnel about these practices, with the aim of ensuring that the rights regarding data protection of the recipients of goods transported by SEUR are respected.

However, as a consequence of the incident that occurred, SEUR has reiterated to all delivery personnel the necessity of complying with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new delivery method and, if applicable, request authorization for delivery to third parties. Furthermore, it has been planned to provide all delivery personnel with the training included in Annex IV to reinforce awareness about the protocols to follow.

Finally, we want to reiterate our commitment to ensuring at all times the security and confidentiality of the data we manage daily, as well as to comply in a timely manner with the provision of the transportation service of goods contracted by our clients."

THIRD: On November 29, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of

Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that there is a processing of personal data, since SEUR GEOPOST carries out, among other treatments, the storage and use of the following personal data of individuals, such as: name, surname, and address of its clients.

SEUR GEOPOST carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter personal data breach) as "all security breaches that lead to the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

III

Adoption of Measures for Compliance with Regulations

SEUR GEOPOST states in the document submitted to the AEPD on November 17, 2023, that "...it has implemented adequate measures in the various delivery procedures and manuals to prevent the reported events from happening again. Additionally, periodic training is conducted to raise awareness among delivery personnel about these practices, with the aim of ensuring that the rights regarding data protection of the recipients of goods transported by SEUR are respected.

However, as a consequence of the incident that occurred, SEUR has reiterated to all delivery personnel the necessity of complying with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new delivery method and, if applicable, request authorization for delivery to third parties. Furthermore, it has been planned to provide all delivery personnel with the training included in Annex IV to reinforce awareness about the protocols to follow.

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In Annex IV of the documentation provided by SEUR GEOPOST, it is verified that the following message is included in the training given to its staff: "Without prior authorization from the customer, it is NOT permitted to deliver to a nearby store (unless it is a pickup), to a neighbor, or even to the doorman."

Consequently, it is evident that SEUR GEOPOST has adopted additional measures subsequent to the filing of the complaint; therefore, the application of Article 65.6 of the LOPDGDD is warranted, which expressly states:

"(...) 6. After the admission for processing, if the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint, when in the specific case there are circumstances that advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated (...)."

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, and given that according to Article 65.6 of the LOPDGDD, there are circumstances that advise the adoption of alternative solutions to corrective action, the archiving of the complaint is warranted.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to SEUR GEOPOST, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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